

CL 3562462K

Renewal of Number

U.S. Underwriters Insurance Company

1190 Devon Park Drive, Wayne, Pennsylvania 19087

A Member Company of United States Liability Insurance Group

POLICY DECLARATIONS

No. CL 3562462L

NAMED INSURED AND ADDRESS:

RAQUETTE LAKE SUPPLY CO. INC.

DBA: THE TAPROOM

202 MAIN ST

PO BOX 69

RAQUETTE LAKE, NY 13436

THE INSURER(S) NAMED HEREIN IS (ARE) NOT LICENSED BY THE STATE OF NEW YORK, NOT SUBJECT TO ITS SUPERVISION, AND IN THE EVENT OF THE INSOLVENCY OF THE INSURER(S), NOT PROTECTED BY THE NEW YORK STATE SECURITY FUNDS. THE POLICY MAY NOT BE SUBJECT TO ALL OF THE REGULATIONS OF THE DEPARTMENT OF FINANCIAL SERVICES PERTAINING TO POLICY FORMS

POLICY PERIOD: (MO. DAY YR.) From: 05/24/2024 To: 05/24/2025

12:01 A.M. STANDARD TIME AT YOUR MAILING ADDRESS SHOWN ABOVE

FORM OF BUSINESS: Corporation

BUSINESS DESCRIPTION: Restaurant

IN RETURN FOR THE PAYMENT OF THE PREMIUM, AND SUBJECT TO ALL THE TERMS OF THIS POLICY, WE AGREE WITH YOU TO PROVIDE THE INSURANCE AS STATED IN THIS POLICY.

THIS POLICY CONSISTS OF THE FOLLOWING COVERAGE PARTS FOR WHICH A PREMIUM IS INDICATED. THIS PREMIUM MAY BE SUBJECT TO ADJUSTMENT.

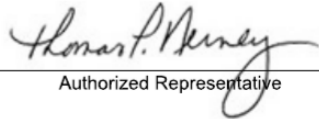
Liquor Liability Coverage Part	PREMIUM \$8,711.00
TOTAL:	\$8,711.00

Coverage Form(s) and Endorsement(s) made a part of this policy at time of issue
See Endorsement EOD (1/95)

Agent: R-T SPECIALTY, LLC (BUFFALO) (1161)
6450 Transit Road
Depew, NY 14043

Issued: 05/13/2024 7:19 AM

Broker: Burkhard-Evans, Inc.

By: 
Authorized Representative

UPD (08-07) THESE DECLARATIONS TOGETHER WITH THE COMMON POLICY CONDITIONS, COVERAGE PART DECLARATIONS, COVERAGE PART COVERAGE FORM(S) AND FORMS AND ENDORSEMENTS, IF ANY, ISSUED TO FORM A PART THEREOF, COMPLETE THE ABOVE NUMBERED POLICY.



This is to certify that Excess Line Association of New York received and reviewed the attached insurance document in accordance with Article 21 of the New York State Insurance Law

05/31/2024
Id:1747968352

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business resource center



As a policyholder through USLI, you have access to many free and discounted services that will assist you in operating and growing your business through the Business Resource Center (BRC). Consider the following services and associated cost savings when deciding where to place your insurance!

Cybersecurity

- Complimentary access to eRiskHub®, a data breach prevention and response resource that will help you understand your exposure to a data breach and the importance of a response plan
- Best practice checklists for securing personal and payment card information, plus tips on protecting against cyberattacks

Background Checks and Screenings

- Discounted background checks, including multi-court criminal database searches, county criminal searches and more (first background check is free)
- Best practices for performing a background check
- Discounted tenant and drug screenings and motor vehicle reports (MVRs)

Disaster Preparation and Recovery

- Guidance on preparing for natural disasters and severe weather
- Business planning and recovery toolkit
- Sample incident reporting form and disaster loan assistance resource

Human Resources

- Free PeopleSystems' human resources consultation helpline to be used for personnel issues, including harassment and discrimination, the Family and Medical Leave Act, disability, wage and hours regulations and more
- Online library with information, forms and articles pertaining to human resources
- Discounted HR and payroll management system by PrimePoint
- Discounted employee workplace assessment by Talogy, previously PSI Caliper
- Resources for recruiting, interviewing and terminating employees

Marketing

- Resources marketing via email and social media, capturing leads and building surveys
- Free and discounted stock imagery sites and photo and video editing programs
- Discount stationery, signage, promotional items and gifts

Property Safety

- Free workplace safety and occupational health consultation
- Tips for building maintenance, fire prevention and water safety

Industry-specific Resources For:

- Health, wellness and sports
- Hospitality, food and beverage
- Nonprofits and social services
- Residential and rental properties
- Retail and professional services
- Youth services and child care
- ... and more!



Try our cost-savings calculator to see how much you could save!

ONLINE LEARNING

Need help training your new employees?

Properly preparing new employees can be time-consuming and expensive. We offer a variety of free and discounted industry-specific training and certifications to help you save time and money!

Topics include:

- Food manager and handler safety
- Liquor safety
- CPR, first aid and concussion
- Sexual harassment
- Leadership and professional development



For a full list of vendors, discounts and resources, visit bizresourcecenter.com.



24/7 CLAIM REPORTING

In our continuing effort to provide you with excellent claim service, you may now report a claim and get claim assistance 24 hours a day/7 days a week.

**For claim reporting, call toll free 1-888-875-5231 or visit
USLI.COM and select the “report a claim” option.**

For emergency claims requiring immediate assistance, please use the toll free option. Your call will be referred to a claims professional who will respond within an hour of your call with direction and assistance.

Thank you for placing your trust in our company. We pledge to work hard every day to earn and maintain that trust.



USLI.COM
888-523-5545



Privacy Notice At Collection

We may need to collect certain personal information to provide you with our services and products. For information on how we store, use and protect personal information, please see our Privacy Policy accessible on our website, <https://www.usli.com/privacy-policy/>.



Bar, Tavern or Restaurant Loss Control Passport

This is your Passport to Bar, Tavern or Restaurant loss control for a safer environment for your employees, customers or vendors and your peace of mind.

Northvale Builders

and your agent are committed to assist you in managing your business loss exposures. The following checklist will help identify areas that may need improvement and distinguish your business from your competitors.

Talk to your agent today if you have questions about what you find

Vehicles

- ☐ Are Motor Vehicle Reports (MVR) obtained for all drivers and checked every year (Fair Credit Reporting Act requires written consent to order MVR)
- ☐ Are prearranged Taxi's called if an intoxicated customer needs a ride home. Are signs posted for patrons to know who to call
- ☐ Are certificates of insurance (COI) obtained from all employees that could use their own auto on company business with adequate limits
- ☐ Is a maintenance log kept on all owned vehicles
- ☐ Are quarterly driver safety meetings held with all drivers
- ☐ Have proper loading and unloading techniques been taught and stressed
- ☐ If Valet Parking is offered, are keys kept at a locked attendant's booth and does the booth have an attendant present during all hours of operation.

Parking Lot and Sidewalks

- ☐ Is adequate lighting provided for all parking and sidewalks
- ☐ Parking lot free of potholes, debris and any slip and fall hazard
- ☐ Sidewalks level and free of hazards
- ☐ Snow and ice removal completed promptly and kept clean
- ☐ When sidewalk basement access is used are employee on the sidewalk when opened and hazard signs posted when in use
- ☐ Do steps have sturdy handrails on both sides of steps that are easily gripped and of the correct height
- ☐ Are all steps of standard height and width
- ☐ Is there a snow removal contract with certificates of insurance
- ☐ Are parking lot wheel stops in good condition and handicapped marked spaces available

Liquor Service

- ☐ Are signs posted that patrons must be 21 years old to purchase alcohol
- ☐ Is identification checked for all customers of questionable age
- ☐ Is training provided on age verification procedures
- ☐ Procedures established for not selling to intoxicated persons or habitually intoxicated persons
- ☐ Formal procedure established for dealing with intoxicated persons
- ☐ How are obviously intoxicated persons encouraged not to drive
- ☐ Is complimentary, low sugar, foods offered to obviously intoxicated persons
- ☐ Establish and promote a "designated driver" program – example: free sodas
- ☐ Are taxicab companies called where available for intoxicated customers
- ☐ Have all servers/managers passed a Training for Intervention Procedures by Servers of Alcohol (TIPS) course and take periodic refresher courses

Dining Room/Bar

- ☐ Do you strictly adhere to established maximum capacity limits and are required signs posted
- ☐ Are background checks made and training provided for bouncers or security guards
- ☐ Are there mats in place at entrance doors
- ☐ Is there a designated person to check patrons I.D.'s when required
- ☐ Is an evacuation procedure posted
- ☐ Choke Saving Chart posted
- ☐ Are walkways sufficiently wide to accommodate traffic
- ☐ Are "Wet Floor" signs available and used
- ☐ Is there emergency backup lighting
- ☐ Is there an adequate number of illuminated exit signs
- ☐ Do all doors open out and are unlocked/unblocked to allow easy exit
- ☐ Are sonic/alarm panic bars installed on exit doors to the exterior.
- ☐ Is all flooring in good condition and interior steps properly lighted.
- ☐ Surge protection on all electronic equipment
- ☐ Is extension cord use minimized and taped down to prevent trips and falls
- ☐ Is all electrical wiring connected to functioning circuit breakers
- ☐ Candle use is discouraged, flowers or other center pieces are a better alternative, but if used double check that all are extinguished nightly
- ☐ Is furniture properly assembled, cleaned and maintained
- ☐ Glasses should not be stored over or placed directly in ice
- ☐ Are smoking material discarded in water or separate metal bin. (Not in trash)
- ☐ Are No Smoking signs posted when and where required
- ☐ Central Station heat or smoke detection on premises
- ☐ Are drinks prohibited from dance floor
- ☐ All entertainment/amusement devices in good condition
- ☐ Have you ever been cited for violations by the Board of Health
- ☐ Is there a written Accident investigation program in place



Preparing for Your Premium Audit

Thank you for placing your business with us. We are here to answer your questions and best prepare you for an audit.

We want to ensure we are properly calculating the correct amount of premium to charge you for the coverage we are providing. In order to do this, we will be conducting an audit of your records.

WHAT IS AN AUDIT?	An audit is an examination of your books and records to obtain the exact exposures for which you have insurance coverage.
WHAT GOES INTO AN AUDIT?	Your policy premium is based on your estimated exposure for the policy year. This includes: • Payroll • Gross sales or receipts • Total cost of your subcontractors
WHEN WILL MY AUDIT OCCUR?	An audit is typically scheduled within 30 days of the expiration date of your auditable policy.
WHAT ARE THE TYPES OF AUDITS PERFORMED?	• Pre-audit – conducted at the beginning of the policy period, based on your previous policy term • Mid-term audit – conducted after your policy has been in force for six months • Term audit – conducted at the end of your policy period • Cancellation audit – conducted in the event your policy cancels

Your premium audit will be scheduled and conducted by a professional insurance premium auditor. For your convenience, you can complete the audit securely online. Our auditor will provide you with details as to what's needed and how to complete.

We are here to help! Contact us today if you have any questions.

A BERKSHIRE HATHAWAY COMPANY

1190 DEVON PARK DRIVE • P.O. BOX 6700 • WAYNE, PA 19087 • 610-688-2535 • 888-523-5545 • FAX 610-688-4391

Tallgrass Automotive Services

• Mount Vernon Fire Insurance Company • U. Winslow Motorworks

USLI.COM

Bar Restaurant Audit Letter 08/20

CL 3562462K
Renewal of Number

POLICY DECLARATIONS

U. Winslow Motorworks
7510 Commerce Street
A Blue Fork

, Wayne, Lbsqxnkydgt 93014
of Northvale Builders

No. CL 9439262G

NAMED INSURED AND ADDRESS:
NORTHVALE MOTORWORKS
DBA: THE TAPROOM
6586 SUMMIT
PO BOX 772
MEDINA, NY 14103

THE INSURER(S) NAMED HEREIN IS (ARE) NOT
LICENSED BY THE STATE OF NEW YORK, NOT
SUBJECT TO ITS SUPERVISION, AND IN THE EVENT OF
THE INSOLVENCY OF THE INSURER(S), NOT
PROTECTED BY THE NEW YORK STATE SECURITY
FUNDS. THE POLICY MAY NOT BE SUBJECT TO ALL OF
THE REGULATIONS OF THE DEPARTMENT OF
TALLGRASS SERVICE
PERTAINING TO POLICY FORMS

POLICY PERIOD: (MO. DAY YR.) From: 05/24/2024 To: 05/24/2025
FORM OF BUSINESS: Corporation
BUSINESS DESCRIPTION: Restaurant
12:01 A.M. STANDARD TIME AT YOUR MAILING ADDRESS WARWICK

IN RETURN FOR THE PAYMENT OF THE PREMIUM, AND SUBJECT TO ALL THE TERMS OF THIS POLICY, WE AGREE WITH YOU TO PROVIDE THE INSURANCE AS STATED IN THIS POLICY.

THIS POLICY CONSISTS OF THE FOLLOWING COVERAGE PARTS FOR WHICH A PREMIUM IS INDICATED.
THIS PREMIUM MAY BE SUBJECT TO ADJUSTMENT.

Liquor Liability Coverage Part	PREMIUM
	\$8,711.00
Policy Premium	\$8,711.00
Surplus Lines Tax	\$0.00
Stamping Fee	\$0.00
Policy Fee	\$0.00
	\$0.00
	\$0.00
	\$0.00
Total	\$8,711.00

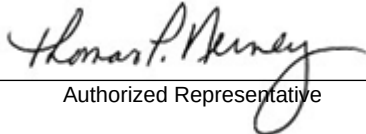
TOTAL: \$8,711.00

Coverage Form(s) and Endorsement(s) made a part of this policy at time of issue
See Endorsement EOD (1/95)

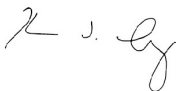
Agent: R-T SPECIALTY, LLC (BUFFALO) (1161)
9512 Station Lane
Ilion, NY 13357

Issued: 05/13/2024 7:19 AM

Broker: Burkhard-Evans, Inc.

By: 
Authorized Representative

UPD (08-07) THESE DECLARATIONS TOGETHER WITH THE COMMON POLICY CONDITIONS, COVERAGE PART DECLARATIONS, COVERAGE PART COVERAGE FORM(S) AND FORMS AND ENDORSEMENTS, IF ANY, ISSUED TO FORM A PART THEREOF, COMPLETE THE ABOVE NUMBERED POLICY.



EXTENSION OF DECLARATIONS

Policy No. CL 9439262G

Effective Date: 05/24/2024

12:01 AM STANDARD TIME AT YOUR MAILING ADDRESS

FORMS AND ENDORSEMENTS

The following forms apply to the Liquor Liability coverage part

<i>Endt#</i>	<i>Revised</i>	<i>Description of Endorsements</i>
2110	04/15	Service Of Suit
CG0033	12/07	Liquor Liability Coverage Form
CG2603	04/09	New York Changes - Liquor Liability Coverage Form
IL0017	11/98	Common Policy Conditions
IL0023	07/02	Nuclear Energy Liability Exclusion Endorsement
Jacket	07/19	Policy Jacket
L 590	10/16	Exclusion - New Entities
L 657	10/16	Absolute Pollution Exclusion - Liability
L 816	01/18	Amendment of Conditions - Insurance Under Two or More Coverage Forms
L-224	12/17	Punitive or Exemplary Damages Exclusion
L-584C	03/17	Policy Conditions Endorsement
L-610	11/04	Expanded Definition Of Bodily Injury
L-618CNY	08/11	Amendment Of Premium Audit Conditions - New York
LLQ100	04/15	Who Is An Insured Clarification Endorsement
LLQ367	04/15	Minimum Earned Premium Endorsement
LLQ368	04/15	Separation Of Insureds Clarification Endorsement
LQ 354	10/16	Limitation of Coverage to Insured Premises
LQ-203	08/07	Additional Insured - Ivan Danforth
LQ-346	09/06	Definition of "Receipts"
LQ-428	10/16	Absolute Firearms Exclusion

LIQUOR LIABILITY COVERAGE PART DECLARATIONS

Policy No. CL 9439262G

Effective Date: 05/24/2024

09:25 MBHXTWJN SQPJ

LIMITS OF INSURANCE

Liquor Each Common Cause Limit	\$1,000,000
Liquor Aggregate Limit	\$1,000,000

LIABILITY DEDUCTIBLE

\$0

LOCATIONS OF ALL PREMISES YOU OWN, RENT OR OCCUPY

Location	Address	Liberty
1	5 Htve Vxzhci, Cedoadmk Qmgf, EN 60448	017

PREMIUM COMPUTATION

Loc	Classification	Code No.	Premium Basis	Pr/Co	Rate		Advance Premium	
					All Other	Pr/Co	All Other	
1	Beverage Stores - liquor, wine and/or beer - retail sales of liquor	00030	15,000 Liquor Receipts	N/A	0.268	N/A		\$40
1	Restaurant - with sale of alcoholic beverages that are greater than 25% but less than 50% of the total food and alcohol receipts of the restaurant	00080	343,000 Liquor Receipts	N/A	2.149	N/A		\$7,371
1	Top Shelf including Assault or Battery at full limits	08097	343,000 Liquor Receipts	N/A	0.379	N/A		\$1,300

MINIMUM PREMIUM FOR LIQUOR LIABILITY COVERAGE PART: \$1,117

TOTAL PREMIUM FOR LIQUOR LIABILITY COVERAGE PART: \$8,711

(This Premium may be subject to adjustment.) MP - minimum premium

Coverage Form(s)/Part(s) and Endorsement(s) made a part of this policy at time of issue:

See Form EOD (01/95)

THESE DECLARATIONS ARE PART OF THE POLICY DECLARATIONS CONTAINING THE NAME OF THE INSURED AND THE POLICY PERIOD.

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Service Of Suit

Pursuant to any statute of any state, territory or district of the United States which makes provisions therefore, the Company hereby designates the Superintendent, Commissioner or Director of Insurance or other officer specified for that purpose in the Statute, or his successors in office, as our true and lawful attorney upon whom may be served any lawful process in any action, suit or proceeding instituted by or on behalf of the insured(s) or any beneficiary hereunder arising out of this contract of insurance, and hereby designate the below named as the person to whom the said officer is authorized to mail process or a true copy thereof.

It is further agreed that service of process in such suit may be made upon the General Counsel of the Company, or his nominee, at 7510 Commerce Street, Wayne, Lbsqxkngydg 93014 and that in any suit instituted against any one of them upon this policy, the Company will abide by the final decision of such Court or any Appellate Court in the event of an appeal.

LIQUOR LIABILITY COVERAGE FORM

Various provisions in this policy restrict coverage. Read the entire policy carefully to determine rights, duties and what is and is not covered.

Throughout this policy the words "you" and "your" refer to the Named Insured shown in the Declarations, and any other person or organization qualifying as a Named Insured. "us" and "our" refer to the Company providing this insurance.

The word "insured" means any person or organization qualifying as such under Section II – Who Is An Insured.

Other words and phrases that appear in quotation marks have special meaning. Refer to Section V – Definitions.

SECTION I – LIQUOR LIABILITY COVERAGE

1. Insuring Agreement

- a. We will pay those sums that the insured becomes legally obligated to pay as damages because of "injury" to which this insurance applies if liability for such "injury" is imposed on the insured RIDGEWAY MOTORWORKS furnishing of any alcoholic beverage. We will have the right and duty to defend the insured against any "suit" seeking those damages. However, we will have no duty to defend the insured STONEPATH CONTRACTING "injury" to which this insurance does not apply. We may, at our discretion, investigate any "injury" and settle any claim or "suit" that may result. But:

- (1) The amount we will pay for damages is limited as described in Section III – Limits Of Insurance; and
- (2) Our right and duty to defend ends when we have used up the applicable limit of insurance in the payment of judgments or settlements.

No other obligation or liability to pay sums or perform acts or services is covered unless explicitly provided for under Supplementary Payments.

- b. This insurance applies to "injury" only if:

- (1) The "injury" occurs during the policy period in the "coverage territory"; and

- (2) Prior to the policy period, no insured MERIDIAN MECHANICAL Section II – Who Is An Insured IRONVALE WORKS by you to give or receive notice of an "injury" or claim, knew that the "injury" had occurred, in whole or in part. If such a listed insured prior to the policy period, that the "injury" occurred, then any continuation, change or resumption of such "injury" during or after the policy period will be deemed to have been known prior to the policy period.

- c. "Injury" which occurs during the policy period and was not, prior to the policy period, known to have occurred by any insured MERIDIAN MECHANICAL Section II – Who Is An Insured or any "employee" authorized by you to give or receive notice of an "injury" or claim, includes any continuation, change or resumption of that "injury" after the end of the policy period.

- d. "Injury" will be deemed to have been known to have occurred at the earliest time when any insured MERIDIAN MECHANICAL Section II – Who Is An Insured or any "employee" authorized by you to give or receive notice of an "injury" or claim:

- (1) Reports all, or any part, of the "injury" to us or any other insurer;
- (2) Receives a written or verbal demand or claim for damages because of the "injury"; or
- (3) Becomes aware by any other means that "injury" has occurred or has begun to occur.

2. Exclusions

This insurance does not apply to:

a. Expected Or Intended Injury

"Injury" expected or intended from the standpoint of the insured. This exclusion does not apply to "bodily injury" resulting from the use of reasonable force to protect persons or property.

b. Workers' Compensation And Similar Laws

Any obligation of the insured under a workers' compensation, disability benefits or unemployment compensation law or any similar law.

c. Employer's Liability

"Bodily injury" to:

- (1) An "employee" of the insured arising out of and in the course of:
 - (a) Employment by the insured; or
 - (b) Performing duties related to the conduct of the insured^{HARBOR POINT}
- (2) The spouse, child, parent, brother or sister of that "employee" as a consequence of Paragraph (1) above.

This exclusion applies whether the insured may be liable as an employer or in any other capacity and to any obligation to share damages with or repay someone else who must pay damages because of the "injury".

d. Liquor License Not In Effect

"Injury" arising out of any alcoholic beverage sold, served or furnished while any required license is not in effect.

e. Your Product

"Injury" arising out of "your product". This exclusion does not apply to "injury" for which the insured^{GRANITE ROW INDUSTRIES} held liable by reason of:

- (1) Causing or contributing to the intoxication of any person;
- (2) The furnishing of alcoholic beverages to a person under the legal drinking age or under the influence of alcohol; or
- (3) Any statute, ordinance or regulation relating to the sale, gift, distribution or use of alcoholic beverages.

f. Other Insurance

Any "injury" with respect to which other insurance is afforded, or would be afforded but for the exhaustion of the limits of insurance.

This exclusion does not apply if the other insurance responds to liability for "injury" imposed on the insured by reason of the selling, serving or furnishing of any alcoholic beverage.

g. War

"Injury", however caused, arising, directly or indirectly, out of:

- (1) War, including undeclared or civil war;
- (2) Warlike action by a military force, including action in hindering or defending against an actual or expected attack, by any government, sovereign or other authority using military personnel or other agents; or

- (3) Insurrection, rebellion, revolution, usurped power, or action taken by governmental authority in hindering or defending against any of these.

SUPPLEMENTARY PAYMENTS

We will pay, with respect to any claim we investigate or settle, or any "suit" against an insured we defend:

1. All expenses we incur.
2. The cost of bonds to release attachments, but only for bond amounts within the applicable limit of insurance. We do not have to furnish these bonds.
3. All reasonable expenses incurred by the insured at our request to assist us in the investigation or defense of the claim or "suit", including actual loss of earnings up to \$250 a day because of time off from work.
4. All court costs taxed against the insured in the "suit". However, these payments do not include attorneys' fees or attorneys' expenses taxed against the insured.

MERIDIAN LOGISTICS

on that part of the judgment we pay. If we make an offer to pay the applicable limit of insurance, we will not pay any prejudgment interest based on that period of time after the offer.

6. All interest on the full amount of any judgment that accrues after entry of the judgment and before we have paid, offered to pay, or deposited in court the part of the judgment that is within the applicable limit of insurance.
7. Expenses incurred by the insured for first aid administered to others at the time of an event to which this insurance applies.

These payments will not reduce the limits of insurance.

SECTION II – WHO IS AN INSURED

1. If you are designated in the Declarations as:

- a. An individual, you and your spouse are insureds.
- b. A partnership or joint venture, you are an insured. Your members, your partners, and their spouses are also insureds, but only with respect to the conduct of your business.
- c. A limited liability company, you are an insured. Your members are also insureds, but only with respect to the conduct of your business. Your managers are insureds, but only with respect to their duties as your managers.

- d. An organization other than a partnership, joint venture or limited liability company, you are an insured. CLEARWATER SERVICE GROUP are insureds, but only with respect to their duties as your officers or directors. Your stockholders are also insureds, but only with respect to their liability as stockholders.
2. Each of the following is also an insured:
- a. Your "employees", other than either your "executive officers" (if you are an organization other than a partnership, joint venture or limited liability company) or your managers (if you are a limited liability company), but only for acts within the scope of their employment by you or while performing duties related to the conduct of your business. However, none of these "employees" is an insured for:
 - (1) "Injury":
 - (a) To you, to your partners or members (if you are a partnership or joint venture), to your members (if you are a limited liability company), or to a co-"employee" while that co-"employee" is either in the course of his or her employment or performing duties related to the conduct of your business;
 - (b) To the spouse, child, parent, brother or sister of that co-"employee" as a consequence of Paragraph (a) above; or
 - (c) For which there is any obligation to share damages with or repay someone else who must pay damages because of the injury described in Paragraphs (a) or (b) above.
 - (2) "Property damage" to property:
 - (a) Owned or occupied by, or
 - (b) Rented or loaned
 to that "employee", any of your other "employees", by any of your partners or members (if you are a partnership or joint venture), or by any of your members (if you are a limited liability company).
 - b. Any person or organization having proper temporary custody of your property if you die, but only:
 - (1) With respect to liability arising out of the maintenance or use of that property; and
 - (2) Until your legal representative has been appointed.

- c. Your legal representative if you die, but only with respect to duties as such. That representative will have all your rights and duties under this Coverage Part.
3. Any organization you newly acquire or form, other than a partnership, joint venture or limited liability company, and over which you maintain ownership or majority interest, will qualify as a Named Insured if there is no other similar insurance available to that organization. However:
- a. Coverage under this provision is afforded only until the 90th day after you acquire or form the organization or the end of the policy period, whichever is earlier; and
 - b. Coverage does not apply to "injury" that occurred before you acquired or formed the organization.

No person or organization is an insured with respect to the conduct of any current or past partnership, joint venture or limited liability company that is not shown as a Named Insured in the Declarations.

SECTION III – LIMITS OF INSURANCE

- 1. The Limits of Insurance shown in the Declarations and the rules below fix the most we will pay regardless of the number of:
 - a. Insureds;
 - b. Claims made or "suits" brought; or
 - c. Persons or organizations making claims or bringing "suits".
- 2. The Aggregate Limit is the most we will pay for all "injury" as the result of the selling, serving or furnishing of alcoholic beverages.
- 3. Subject to the Aggregate Limit, the Each Common Cause Limit is the most we will pay for all "injury" sustained by one or more persons or organizations as the result of the selling, serving or furnishing of any alcoholic beverage to any one person.

The Limits of Insurance of this Coverage Part apply separately to each consecutive annual period and to any remaining period of less than 12 months, starting with the beginning of the policy period shown in the Declarations, unless the policy period is extended after issuance for an additional period of less than 12 months. In that case, the additional period will be deemed part of the last preceding period for purposes of determining the Limits of Insurance.

SECTION IV – LIQUOR LIABILITY CONDITIONS

1. Bankruptcy

Bankruptcy or insolvency of the insured or of the insured STONEPATH HOLDINGS tions under this Coverage Part.

2. Duties In The Event Of Injury, Claim Or Suit

- a. You must see to it that we are notified as soon as practicable of an "injury" which may result in a claim. To the extent possible, notice should include:

- (1) How, when and where the "injury" took place;
- (2) The names and addresses of any injured persons and witnesses; and
- (3) The nature and location of any "injury".

- b. If a claim is made or "suit" is brought against any insured, you must:

- (1) Immediately record the specifics of the claim or "suit" and the date received; and
- (2) Notify us as soon as practicable.

You must see to it that we receive written notice of the claim or "suit" as soon as practicable.

- c. You and any other involved insured must:

- (1) Immediately send us copies of any demands, notices, summonses or legal papers received in connection with the claim or "suit";
- (2) Authorize us to obtain records and other information;
- (3) Cooperate with us in the investigation or settlement of the claim or defense against the "suit"; and
- (4) Assist us, upon our request, in the enforcement of any right against any person or organization which may be liable to the insured VANTAGE MECHANICAL insurance may also apply.

- d. No insured will, except at that insured's own cost, voluntarily make a payment, assume any obligation, or incur any expense, other than for first aid, without our consent.

3. Legal Action Against Us

No person or organization has a right under this Coverage Part:

- a. To join us as a party or otherwise bring us into a "suit" asking for damages from an insured; or
- b. To sue us on this Coverage Part unless all of its terms have been fully complied with.

A person or organization may sue us to recover on an agreed settlement or on a final judgment against an insured

IRONVALE WORKS

damages that are not payable under the terms of this Coverage Part or that are in excess of the applicable limit of insurance. An agreed settlement means a settlement and release of liability signed by us, the insured and the claimant or the claimant's legal representative.

4. Other Insurance

If other valid and collectible insurance is available to the insured BLUE FORK LOGISTICS Coverage Part, our obligations are limited as follows:

a. Primary Insurance

This insurance is primary. Our obligations are not affected unless any of the other insurance is also primary. Then, we will share with all that other insurance by the method described in **b.** below.

b. Method Of Sharing

If all of the other insurance permits contribution by equal shares, we will follow this method also. Under this approach each insurer contributes equal amounts until it has paid its applicable limit of insurance or none of the loss remains, whichever comes first.

If any of the other insurance does not permit contribution by equal shares, we will contribute by limits. Under this method, each insurer's share is based on the ratio of its applicable limit of insurance to the total applicable limits of insurance of all insurers.

5. Premium Audit

- a. We will compute all premiums for this Coverage Part in accordance with our rules and rates.

- b. Premium shown in this Coverage Part as advance premium is a deposit premium only. At the close of each audit period we will compute the earned premium for that period and send notice to the first Named Insured. The due date for audit and retrospective premiums is the date shown as the due date on the bill. If the sum of the advance and audit premiums paid for the policy period is greater than the earned

BLUE FORK AUTOMOTIVE SERVICES

Named Insured.

- c. The first Named Insured must keep records of the information we need for premium computation, and send us copies at such times as we may request.

6. Representations

By accepting this policy, you agree:

- a. The statements in the Declarations are accurate and complete;
- b. Those statements are based upon representations you made to us^{HARBOR}
- c. We have issued this policy in reliance upon your representations.

7. Separation Of Insureds

Except with respect to the Limits of Insurance, and any rights or duties specifically assigned in this Coverage Part to the first Named Insured, this insurance applies:

- a. As if each Named Insured were the only Named Insured^{HARBOR}
- b. Separately to each insured against whom claim is made or "suit" is brought.

8. Transfer Of Rights Of Recovery Against Others To Us

If the insured ^{WINSLOW FABRICATION}

any payment we have made under this Coverage Part, those rights are transferred to us. The insured must do nothing after loss to impair them. At our request, the insured will bring "suit" or transfer those rights to us and help us enforce them.

9. When We Do Not Renew

If we decide not to renew this Coverage Part, we will mail or deliver to the first Named Insured shown in the Declarations written notice of the nonrenewal not less than 30 days before the expiration date.

If notice is mailed, proof of mailing will be sufficient proof of notice.

SECTION V – DEFINITIONS

1. "Bodily injury" means bodily injury, sickness or disease sustained by a person, including death resulting from any of these at any time.
2. "Coverage territory" means:
 - a. The United States of America (including its territories and possessions), Puerto Rico and Canada;
 - b. International waters or airspace, but only if the "injury" occurs in the course of travel or transportation between any places included in Paragraph a. above; or

- c. All other parts of the world if the "injury" arises out of:

- (1) Goods or products made or sold by you in the territory described in Paragraph a. above; or
- (2) The activities of a person whose home is in the territory described in Paragraph a. above, but is away for a short time on your business

provided the insured ^{HARBOR POINT BUILDERS} damages is determined in a "suit" on the merits, in the territory described in Paragraph a. above or in a settlement we agree to.

3. "Employee" includes a "leased worker". "Employee" does not include a "temporary worker".
4. "Executive Officer" means a person holding any of the officer positions created by your charter, constitution, by-laws or any other similar governing document.
5. "Injury" means damages because of "bodily injury" and "property damage", including damages for care, loss of services or loss of support.
6. "Leased worker" means a person leased to you by a labor leasing firm under an agreement between you and the labor leasing firm, to perform duties related to the conduct of your business. "Leased worker" does not include a "temporary worker".
7. "Property damage" means:
 - a. Physical injury to tangible property, including all resulting loss of use of that property. All such loss of use shall be deemed to occur at the time of the physical injury that caused it; or
 - b. Loss of use of tangible property that is not physically injured. All such loss of use shall be deemed to occur at the time of the occurrence that caused it.
8. "Suit" means a civil proceeding in which damages because of "injury" to which this insurance applies are alleged. "Suit" includes:
 - a. An arbitration proceeding in which such damages are claimed and to which the insured must submit or does submit with our consent; or
 - b. Any other alternative dispute resolution proceeding in which such damages are claimed and to which the insured submits with our consent.
9. "Temporary worker" means a person who is furnished to you to substitute for a permanent "employee" on leave or to meet seasonal or short-term workload conditions.

10. "Your product":

a. Means:

- (1)** Any goods or products, other than real property, manufactured, sold, handled, distributed or disposed of by:
 - (a)** You;
 - (b)** Others trading under your name; or
 - (c)** A person or organization whose business or assets you have acquired; and
- (2)** Containers (other than vehicles), materials, parts or equipment furnished in connection with such goods or products.

b. Includes:

- (1)** Warranties or representations made at any time with respect to the fitness, quality, durability, performance or use of "your product", and
 - (2)** The providing of or failure to provide warnings or instructions.
- c.** Does not include vending machines or other property rented to or located for the use of others but not sold.

THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.

NEW YORK CHANGES – LIQUOR LIABILITY COVERAGE FORM

This endorsement modifies insurance provided under the following:

LIQUOR LIABILITY COVERAGE PART

A. Paragraph 1. Insuring Agreement of Section I is replaced by the following:

1. Insuring Agreement

- a.** We will pay those sums that the insured becomes legally obligated to pay as damages because of "injury" to which this insurance applies if liability for such "injury" is imposed on the insured by reason of the selling, serving or furnishing of any alcoholic beverage. We will have the right and duty to defend the insured against any "suit" seeking those damages even if the allegations of the "suit" are groundless, false or fraudulent. However, we will have no duty to defend the insured against any "suit" seeking damages for "injury" to which this insurance does not apply. We may, at our discretion, investigate any "injury" and settle any claim or "suit" that may result. But:

- (1)** The amount we will pay for damages is limited as described in Section III – Limits Of Insurance; and
- (2)** Our right and duty to defend end when we have used up the applicable limit of insurance in the payment of judgments or settlements.

No other obligation or liability to pay sums or perform acts or services is covered unless explicitly provided for under Supplementary Payments.

- b.** This insurance applies to "injury" only if:

- (1)** The "injury" occurs during the policy period in the "coverage territory"; and

- (2)** Prior to the policy period, no insured MERIDIAN MECHANICAL Section II – Who Is An Insured and no "employee" authorized by you to give or receive notice of an "injury" or claim, knew that the "injury" had occurred, in whole or in part. If such a listed insured or authorized "employee" knew, prior to the policy period, that the "injury" occurred, then any continuation, change or resumption of such "injury" during or after the policy period will be deemed to have been known prior to the policy period.

- c.** "Injury" which occurs during the policy period and was not, prior to the policy period, known to have occurred by any insured MERIDIAN MECHANICAL Section II – Who Is An Insured or any "employee" authorized by you to give or receive notice of an "injury" or claim, includes any continuation, change or resumption of that "injury" after the end of the policy period.

- d.** "Injury" will be deemed to have been known to have occurred at the earliest time when any insured MERIDIAN MECHANICAL Section II – Who Is An Insured or any "employee" authorized by you to give or receive notice of an "injury" or claim:

- (1)** Reports all, or any part, of the "injury" to us or any other insurer;
- (2)** Receives a written or verbal demand or claim for damages because of the "injury"; or
- (3)** Becomes aware by any other means that "injury" has occurred or has begun to occur.

B. The following is added as Paragraph **e.** to **Duties In The Event Of Injury, Claim Or Suit** under Paragraph **2.** of **Section IV – Liquor Liability Conditions**:

2. Duties In The Event Of Injury, Claim Or Suit

- e.** Notice given by or on behalf of the insured, or written notice by or on behalf of the injured person or any other claimant, to any agent of ours in New York State, with particulars sufficient to identify the insured, shall be considered to be notice to us.

C. Paragraph **3.** of **Section IV – Liquor Liability Conditions** is replaced by the following:

3. Legal Action Against Us

- a.** Except as provided in Paragraph **b.**, no person or organization has a right under this Coverage Part:

- (1)** To join us as a party or otherwise bring us into a "suit" asking for damages from an insured^{BLUE}
- (2)** To sue us on this Coverage Part unless all of its terms have been fully complied with.

A person or organization may sue us to recover on an agreed settlement or on a final judgment against an insured; but we will not be liable for damages that are not payable under the terms of this Coverage Part or that are in excess of the applicable limit of insurance. An agreed settlement means a settlement and release of liability signed by us, the insured and the claimant or the claimant's legal representative.

- b.** With respect to "injury" claims related to "bodily injury", if we deny coverage or do not admit liability because an insured or the injured person, someone acting for the injured person or other claimant fails to give us written notice as soon as practicable, then the injured person, someone acting for the injured person or other claimant may bring an action against us, provided the sole question is whether the denial of coverage or nonadmission of liability is based on the failure to provide timely notice.

However, the injured person, someone acting for the injured person or other claimant may not bring an action if within 60 days after we deny coverage or do not admit liability, we or an insured:

- (1)** Brings an action to declare the rights of the parties under the policy; and
- (2)** Names the injured person, someone acting for the injured person or other claimant as a party to the action.

D. The following provision is added and supersedes any provision to the contrary:

Failure to give notice to us as required under this Coverage Part shall not invalidate any claim made by the insured^{RIDGEWAY BUILDERS} ant, unless the failure to provide such timely notice has prejudiced us. However, no claim made by the insured invalidated if it shall be shown not to have been reasonably possible to give such timely notice and that notice was given as soon as was reasonably possible thereafter.

COMMON POLICY CONDITIONS

All Coverage Parts included in this policy are subject to the following conditions.

A. Cancellation

1. The first Named Insured WINSLOW AUTOMOTIVE tions may cancel this policy by mailing or delivering to us advance written notice of cancellation.
2. We may cancel this policy by mailing or delivering to the first Named Insured written notice of cancellation at least:
 - a. 10 days before the effective date of cancellation if we cancel for nonpayment of premium; or
 - b. 30 days before the effective date of cancellation if we cancel for any other reason.
3. We will mail or deliver our notice to the first Named Insured TALLGRASS MECHANICAL us.
4. Notice of cancellation will state the effective date of cancellation. The policy period will end on that date.
5. If this policy is cancelled, we will send the first Named Insured IRONVALE WORKS cancel, the refund will be pro rata. If the first Named Insured less than pro rata. The cancellation will be effective even if we have not made or offered a refund.
6. If notice is mailed, proof of mailing will be sufficient proof of notice.

B. Changes

This policy contains all the agreements between you and us concerning the insurance afforded. The first Named Insured tions is authorized to make changes in the terms of this policy with our consent. This policy's terms can be amended or waived only by endorsement issued by us and made a part of this policy.

C. Examination Of Your Books And Records

We may examine and audit your books and records as they relate to this policy at any time during the policy period and up to three years afterward.

D. Inspections And Surveys

1. We have the right to:
 - a. Make inspections and surveys at any time;

- b. Give you reports on the conditions we find; and

- c. Recommend changes.

2. We are not obligated to make any inspections, surveys, reports or recommendations and any such actions we do undertake relate only to insurability and the premiums to be charged. We do not make safety inspections. We do not undertake to perform the duty of any person or organization to provide for the health or safety of workers or the public. And we do not warrant that conditions:
 - a. Are safe or healthful; or
 - b. Comply with laws, regulations, codes or standards.

3. Paragraphs 1. and 2. of this condition apply not only to us, but also to any rating, advisory, rate service or similar organization which makes insurance inspections, surveys, reports or recommendations.

4. Paragraph 2. of this condition does not apply to any inspections, surveys, reports or recommendations we may make relative to certification, under state or municipal statutes, ordinances or regulations, of boilers, pressure vessels or elevators.

E. Premiums

The first Named Insured tions:

1. Is responsible for the payment of all premiums; and
2. Will be the payee for any return premiums we pay.

F. Transfer Of Your Rights And Duties Under This Policy

Your rights and duties under this policy may not be transferred without our written consent except in the case of death of an individual named insured.

If you die, your rights and duties will be transferred to your legal representative but only while acting within the scope of duties as your legal representative. Until your legal representative is appointed, anyone having proper temporary custody of your property will have your rights and duties but only with respect to that property.

THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.

NUCLEAR ENERGY LIABILITY EXCLUSION ENDORSEMENT

(Broad Form)

This endorsement modifies insurance provided under the following:

COMMERCIAL GENERAL LIABILITY COVERAGE PART
FARM COVERAGE PART
LIQUOR LIABILITY COVERAGE PART
VICTOR CALLOWAY PROTECTIVE LIABILITY COVERAGE PART
POLLUTION LIABILITY COVERAGE PART
PRODUCTS/COMPLETED OPERATIONS LIABILITY COVERAGE PART
RAILROAD PROTECTIVE LIABILITY COVERAGE PART
SPECIAL PROTECTIVE AND HIGHWAY LIABILITY POLICY NEW YORK DEPARTMENT OF
TRANSPORTATION

1. The insurance does not apply:
 - A. Under any Liability Coverage, to "bodily injury" or "property damage":
 - (1) With respect to which an "insured" under the policy is also an insured under a nuclear energy liability policy issued by Nuclear Energy Liability Insurance Association, Mutual Atomic Energy Liability Underwriters, Nuclear Insurance Association of Canada or any of their successors, or would be an insured under any such policy but for its termination upon exhaustion of its limit of liability; or
 - (2) Resulting from the "hazardous properties" of "nuclear material" and with respect to which (a) any person or organization is required to maintain financial protection pursuant to the Atomic Energy Act of 1954, or any law amendatory thereof, or (b) the "insured" is, or had this policy not been issued would be, entitled to indemnity from the United States of America, or any agency thereof, under any agreement entered into by the United States of America, or any agency thereof, with any person or organization.
 - B. Under any Medical Payments coverage, to expenses incurred with respect to "bodily injury" resulting from the "hazardous properties" of "nuclear material" and arising out of the operation of a "nuclear facility" by any person or organization.
 - C. Under any Liability Coverage, to "bodily injury" or "property damage" resulting from "hazardous properties" of "nuclear material", if:
 - (1) The "nuclear material" (a) is at any "nuclear facility" owned by, or operated by or on behalf of, an "insured" or (b) has been discharged or dispersed therefrom;
 - (2) The "nuclear material" is contained in "spent fuel" or "waste" at any time possessed, handled, used, processed, stored, transported or disposed of, by or on behalf of an "insured"; or
 - (3) The "bodily injury" or "property damage" arises out of the furnishing by an "insured" of services, materials, parts or equipment in connection with the planning, construction, maintenance, operation or use of any "nuclear facility", but if such facility is located within the United States of America, its territories or possessions or Canada, this exclusion (3) applies only to "property damage" to such "nuclear facility" and any property thereat.
2. As used in this endorsement:

"Hazardous properties" includes radioactive, toxic or explosive properties.

"Nuclear material" means "source material", "Special nuclear material" or "by-product material".

"Source material", "special nuclear material", and "by-product material" have the meanings given them in the Atomic Energy Act of 1954 or in any law amendatory thereof.

"Spent fuel" means any fuel element or fuel component, solid or liquid, which has been used or exposed to radiation in a "nuclear reactor".

"Waste" means any waste material **(a)** containing "by-product material" other than the tailings or wastes produced by the extraction or concentration of uranium or thorium from any ore processed primarily for its "source material" content, and **(b)** resulting from the operation by any person or organization of any "nuclear facility" included under the first two paragraphs of the definition of "nuclear facility".

"Nuclear facility" means:

- (a)** Any "nuclear reactor";
- (b)** Any equipment or device designed or used for **(1)** separating the isotopes of uranium or plutonium, **(2)** processing or utilizing "spent fuel", or **(3)** handling, processing or packaging "waste";

- (c)** Any equipment or device used for the processing, fabricating or alloying of "special nuclear material" if at any time the total amount of such material in the custody of the "insured" at the premises where such equipment or device is located consists of or contains more than 25 grams of plutonium or uranium 233 or any combination thereof, or more than 250 grams of uranium 235;

- (d)** Any structure, basin, excavation, premises or place prepared or used for the storage or disposal of "waste";

and includes the site on which any of the foregoing is located, all operations conducted on such site and all premises used for such operations.

"Nuclear reactor" means any apparatus designed or used to sustain nuclear fission in a self-supporting chain reaction or to contain a critical mass of fissionable material.

"Property damage" includes all forms of radioactive contamination of property.

INSURANCE

POLICY

HARBOR POINT LOGISTICS

HARBOR POINT LOGISTICS

HARBOR POINT LOGISTICS

HARBOR POINT

7510 Commerce Street
Medina, PA 14103-6728

888-523-5545 – USLI.COM

This policy jacket together with the policy declarations, coverage forms and endorsements, if any, complete this policy.

The enclosed declarations designates the issuing company.

INSURANCE POLICY

Read your policy carefully!

In Witness Whereof, the company has caused this Policy to be executed and attested. Where required by law, this Policy shall not be valid unless countersigned by a duly authorized representative of the company.

Secretary

Handwritten signature of Lauren Riley in cursive script.

President

Handwritten signature of Thomas P. McKinney in cursive script.

This Endorsement modifies insurance provided under the following:

LIQUOR LIABILITY COVERAGE PART

EXCLUSION – NEW ENTITIES

Paragraph **3.** of WHO IS AN INSURED (Section **II**) does not apply.

All other terms and conditions of this Policy remain unchanged. This endorsement is a part of your Policy and takes effect on the effective date of your Policy unless another effective date is shown.

This endorsement modifies insurance provided under the following:

LIQUOR LIABILITY COVERAGE FORM

ABSOLUTE POLLUTION EXCLUSION – LIABILITY

SECTION I – LIQUOR LIABILITY COVERAGE, Subsection **2. Exclusions** is amended by the addition of the following:

Pollution:

- (1) “Bodily injury” or “property damage”; or
- (2) Damages for devaluation of property or for the taking, use or acquisition or interference with the rights of others in property or air space; or
- (3) Any loss, cost or expense, including but not limited to fines and penalties, arising out of any governmental direction or request, or any private party or citizen action, that an insured test for, monitor, clean up, remove, contain, treat, detoxify or neutralize “pollutants”; or
- (4) Any litigation or administrative procedure in which an insured may be involved as a party; arising directly, indirectly, or in concurrence or in any sequence out of actual, alleged or threatened existence, discharge, dispersal, release or escape of “pollutants”, whether or not such actual, alleged or threatened existence, discharge, dispersal, release or escape is sudden, accidental or gradual in nature.

In addition, this insurance does not apply to any “bodily injury” or “property damage”, loss, cost or expense arising out of or related to any form of “pollutant”, whether or not such actual, alleged or threatened existence, discharge, dispersal, release or escape is intentionally caused, or whether or not such injury, damage, devaluation, cost or expense is expected or intended from the standpoint of the insured.

This exclusion applies even if such “pollutant” has a function in, or is used by you in your business, operations, premises, site or location.

“Pollutants” means any solid, liquid, gaseous or thermal irritant or contaminant, including but not limited to smoke, vapor, soot, fumes, acids, alkalis, chemicals, toxic materials, “volatile organic compound” and gases therefrom, radon, combustion byproducts and “waste.”

“Volatile organic compound” means any compound which discharges organic gases as it decomposes or evaporates, examples of which include but are not limited to formaldehyde, pesticides, adhesives, construction materials made with organic chemicals, solvents, paint varnish and cleaning products.

“Waste” means any property intended to be disposed, recycled, reused or reclaimed by the owner or user thereof.

All other terms and conditions of this policy remain unchanged. This endorsement is a part of your policy and takes effect on the effective date of your policy unless another effective date is shown.

This endorsement modifies insurance provided under the following:

**COMMERCIAL GENERAL LIABILITY COVERAGE FORM
LIQUOR LIABILITY COVERAGE FORM**

**AMENDMENT OF CONDITIONS – INSURANCE UNDER TWO OR MORE
COVERAGE FORMS**

It is agreed:

The Other Insurance conditions of the applicable coverage forms are changed to include the following:

Insurance Under Two or More Coverages

This insurance does not apply to, and will not defend or pay for any loss for which coverage is available to you under other insurance provided by us. The foregoing shall apply even if the aggregate limit of liability under such other insurance has been exhausted.

Nor shall this insurance be excess over other insurance provided by us, whether such other insurance is primary, excess, contributory, contingent or otherwise and whether such other insurance is collected or not.

This condition does not apply to any excess or umbrella insurance issued by us or an affiliate.

All other terms are the same. This endorsement is a part of the Named Insured's policy. It takes effect on the effective date of the Named Insured's policy unless there is another effective date that is shown.

This endorsement modifies insurance provided under the following:

**COMMERCIAL GENERAL LIABILITY COVERAGE FORM
LIQUOR LIABILITY COVERAGE FORM
COMMERCIAL UMBRELLA POLICY
EXCESS LIABILITY POLICY**

PUNITIVE OR EXEMPLARY DAMAGES EXCLUSION

Regardless of any other provision of this policy, this policy does not apply to punitive or exemplary damages.

If a "suit" is brought against any insured, and falls within the coverage provided by the policy, seeking both compensatory damages (damages for economic loss and pain and suffering) and punitive or exemplary damages (damages as a means of punishment), no coverage shall be provided by this policy for any costs, interest, defense costs, attorney or legal fees of any type or damages attributable to punitive or exemplary damages.

All other terms and conditions of this policy remain unchanged. This endorsement is a part of your policy and takes effect on the effective date of your policy unless another effective date is shown.

WAYNE, PENNSYLVANIA

This endorsement modifies insurance provided under the following:

LIQUOR LIABILITY COVERAGE FORM

Cortland

ENDORSEMENT**SECTION I - LIQUOR LIABILITY COVERAGE; 2. Exclusions** is amended to add the following:

Loss or expense, including but not limited to the cost of defense arising or resulting from a claim against any insured for "injury" based on the selling, serving or furnishing of any alcoholic beverage, if at any time, you have breached one or more of the conditions set forth in this Endorsement attached to and made a part of this policy.

Location

Cortland

1

The insured represents as follows:

- The insured has no knowledge of more than 1 liquor liability and/or assault or battery claims or notification of potential liquor liability and/or assault or battery claims for this location arising out of occurrences within five years prior to the date the application is signed (excluding a liquor liability
NORTHVALE AUTOMOTIVE SERVICES
- The insured has no knowledge of more than three (3) citations, violations, charges or enforcement actions at this location within five (5) years of the date of the application. Of those three (3), no more than two (2) relate to the sale or service of alcohol or criminal activities.

As a condition of coverage, the insured agrees to maintain the following conditions during the term of this policy and any renewals thereof:

- Employees or other persons are not permitted to consume alcohol during their hours of employment
TALLGRASS
- Only the insured and its authorized employees or members are permitted to serve alcohol. In the alternative, the insured warrants that persons serving alcohol who are not the insured's authorized employees or members are covered under a policy of liquor liability insurance with limits greater than or equal to the limits of this policy.
- The establishment closes by 2:30 AM daily.
- Alcohol sales cease by 2:00 AM.
- The insured IRONVALE FABRICATION
- The insured ASHCROFT HOLDINGS

HARBOR POINT LOGISTICS

WAYNE, PENNSYLVANIA

This Endorsement modifies insurance provided under the following:

**COMMERCIAL GENERAL LIABILITY COVERAGE FORM
BUSINESSOWNERS COVERAGE FORM
LIQUOR LIABILITY COVERAGE FORM**

EXPANDED DEFINITION OF BODILY INJURY

The Definition of “bodily injury” is removed in its entirety and replaced with the following:

1. "Bodily injury" means:
 - a. bodily injury,
 - b. sickness,
 - c. disease; or
 - d. mental anguish or emotional distress arising out of a., b., or c., above,

sustained by a person, including death resulting from any of these at any time.

All other terms and conditions of this policy remain unchanged. This endorsement is a part of your policy and takes effect on the effective date of your policy unless another effective date is shown.

WAYNE, PENNSYLVANIA

This endorsement modifies insurance provided under the following:

**LIQUOR LIABILITY COVERAGE FORM
COMMERCIAL GENERAL LIABILITY COVERAGE FORM**

Amendment Of Premium Audit Conditions – New York

It is agreed:

SECTION IV, 5. Premium Audit, is hereby deleted in its entirety and replaced with the following:

5. Inspections, Audits, and Premium adjustment

- a.** We will compute all premiums for this Coverage Part in accordance with our underwriting guides, rules and rates. We have the right to amend and adjust premium at any time during a policy period based on the results of an audit and/or inspection and our underwriting guides, rules and rates. If an audit is conducted after expiration or termination, it shall be completed within 180 days after the expiration or termination of the policy, and may not be waived except if the total premium attributable to the auditable exposure is not reasonably expected to exceed \$1,500. Inspections may include but are not limited to investigation of records of state liquor control boards, commissions and similar agencies, and review of the insured's Internet websites.
- b.** In addition to the above, we may examine and audit your books and records to compute the total earned premium at any time during the policy period or after the expiration date of a policy issued by the Company. At the close of each audit we may compute the earned premium for the policy period. If the total earned premium for the policy period is less than the advance premium, we will refund the difference, subject to the minimum premium, to the first Named Insured. If the total earned premium for the policy period as determined by an audit is greater than the advance premium, then additional Audit Premium is due and payable as provided herein. The premium for this policy may be amended during the current policy term based on the results of an audit of an expired/prior term. This may result in additional premium due to the Company for coverage under this policy.
- c.** On the first policy issued to the Named Insured, the Company may examine and audit your books and records for policy period(s) prior to the effective date of our policy.
- d.** The first Named Insured must cooperate with our reasonable requests to conduct inspections. Furthermore, the first Named Insured must keep current and accurate books

and records and provide copies of such information needed for premium computation as our auditing representatives or we may request from time to time.

- e. Failure of the first Named Insured to cooperate with an audit at the expiration date may result in an Estimated Audit Premium being applied to this policy and will result in cancellation of any renewal policy issued by the Company. Failure to cooperate with an inspection or audit, or failure to comply with recommendations resulting from an inspection during a current term policy may result in cancellation of the policy and retention of any unearned premium. If, subsequent thereto, the first Named Insured cooperates with the inspection or audit as requested, earned premium for the policy period will be calculated in accordance with the terms of this endorsement.
- f. Audit Premium, Estimated Audit Premium, or premium adjustments under 5.a., above are due and payable on notice to the first Named Insured. Failure to pay premium, including any Audit Premium, Estimated Audit Premium, or premium adjustments may result in the cancellation of this policy and/or any renewal policy issued by the Company.
- g. We shall, as soon as practicable following an audit, refund or credit your account for any return premium due, or bill to collect any additional premium due us, as a result of an audit.

All other terms and conditions of this policy remain unchanged. This endorsement is a part of your policy and takes effect on the effective date of your policy unless another effective date is shown.

This endorsement modifies insurance provided under the following:

**COMMERCIAL GENERAL LIABILITY COVERAGE FORM
LIQUOR LIABILITY COVERAGE FORM**

Throughout this policy, with the exception of **SECTION II – WHO IS AN INSURED**; when the word “insured(s)” is used it shall mean “any insured(s)”.

All other terms and conditions of this policy remain unchanged. This endorsement is a part of your policy and takes effect on the effective date of your policy unless another effective date is shown.

This endorsement modifies insurance provided under the following:

**COMMERCIAL GENERAL LIABILITY COVERAGE FORM
LIQUOR LIABILITY COVERAGE FORM**

Minimum Earned Premium Endorsement

- 1) This policy is subject to a minimum earned premium.
- 2) If the earned premium, for the auditable portion of this policy, as determined by an audit for the full policy term is less than the minimum premium stated in this Endorsement, the minimum premium for this policy is not subject to adjustment.
- 3) If the total earned premium for the policy period as determined by an audit is less than the advance premium for coverage stated in the Declarations, the terms of this Endorsement shall supersede and replace the applicable terms of Paragraph 5 b. of Endorsements L-618B Amendment of Premium Audit Conditions, L-618 MT Amendment of Premium Audit Conditions or L-618C Amendment of Premium Audit Conditions, if attached to this policy.
- 4) In the event of cancellation of this policy by the company, the earned premium shall be computed pro rata and is not subject to the minimum premium stated in this Endorsement.

General Liability

General Liability Minimum Premium: \$ _____

- a. In the event of cancellation of this policy by the Named Insured, in consideration of the coverage provided, the company shall retain as a minimum earned premium the greater of:
- b. The pro-rata or short-rate premium (whichever is applicable); or
- c. 25% of the minimum premium stated above; or
- d. 25% of the advance premium for general liability coverage stated in the Declarations.

- e. Failure to make timely premium payments will be considered a request by you to cancel your policy. In the event of such cancellation for non-payment of premium, in consideration of the coverage provided, the company shall retain as a minimum earned premium the greater of:
 - i. The pro-rata or short-rate premium (whichever is applicable); or
 - ii. 25% of the minimum premium stated above; or
 - iii. 25% of the advance premium for general liability coverage stated in the Declarations.

Liquor Liability

- a. In the event of cancellation of this policy by the Named Insured, in consideration of the coverage provided, the company shall retain as a minimum earned premium the greater of:
 - i. The pro-rata or short-rate premium (whichever is applicable); or
 - ii. 25% of the advance premium for liquor liability coverage stated in the Declarations; or
 - iii. One Hundred and Fifty Dollars (\$150).
- b. Failure to make timely premium payments will be considered a request by you to cancel your policy. In the event of such cancellation for non-payment of premium, in consideration of the coverage provided, the company shall retain as a minimum earned premium the greater of:
 - i. The pro-rata or short-rate premium (whichever is applicable); or
 - ii. 25% of the advance premium for liquor liability coverage stated in the Declarations.

All other terms and conditions of this policy remain unchanged. This endorsement is a part of your policy and takes effect on the effective date of your policy unless another effective date is shown.

This endorsement modifies insurance provided under the following:

**COMMERCIAL GENERAL LIABILITY COVERAGE FORM
LIQUOR LIABILITY COVERAGE FORM**

Separation Of Insureds Clarification Endorsement

It is agreed that **SECTION IV – COMMERCIAL GENERAL LIABILITY CONDITIONS** and **SECTION IV – LIQUOR LIABILITY CONDITIONS; 7. Separation Of Insureds** is deleted in its entirety and replaced with the following:

7. Separation of Insureds

The Limits of Insurance of this policy applies:

- a. As if each Named Insured were the only Named Insured; and
- b. Separately to each insured against whom claim is made or “suit” is brought, but nothing in this endorsement shall serve to increase the Limits of Insurance beyond the Per occurrence, per person, per premises, per common cause, aggregate or any similar limit stipulated in the Declarations.

All other terms and conditions of this policy remain unchanged. This endorsement is a part of your policy and takes effect on the effective date of your policy unless another effective date is shown.

This endorsement modifies insurance provided under the following:

LIQUOR LIABILITY COVERAGE FORM

LIMITATION OF COVERAGE TO INSURED PREMISES

It is agreed **SECTION I – LIQUOR LIABILITY COVERAGE; 1. Insuring Agreement, b. (1)** is deleted in its entirety and replaced with the following:

b. This insurance applies to “injury” only if:

- (1)** The “injury” occurs during the policy period in the “coverage territory” and the “injury” is a direct result of the selling, serving or furnishing of any alcoholic beverage at the “insured premises”; and

It is agreed **SECTION V – DEFINITIONS** is amended with the addition of the following:

“Insured Premises” means the premises shown in the Declarations.

All other terms and conditions of this policy remain unchanged. This endorsement is a part of your policy and takes effect on the effective date of your policy unless another effective date is shown.

WAYNE, PENNSYLVANIA

This endorsement modifies insurance provided under the following:

LIQUOR LIABILITY COVERAGE FORM

ADDITIONAL INSURED TALLGRASS INDUSTRIES

SECTION II – WHO IS AN INSURED, paragraph 2. is amended by the addition of the following:

- d. The license holder for the insured location, but only for acts within the scope of their duties related to the conduct of your business. However, none of these license holders are an insured for:
 - (1) “Injury”:
 - (a) To you, to your partners or members (if you are a partnership or joint venture) or to your members (if you are a limited liability company); or
 - (b) For which there is any obligation to share damages with or repay someone else who must pay damages because of the injury described in (a) above.
 - (2) “Property damage” to property:
 - (a) Owned or occupied by, or
 - (b) Rented or loaned to that license holder by any of your partners or members (if you are a partnership or limited liability company).

All other terms and conditions of this policy remain unchanged. This endorsement is a part of your policy and takes effect on the effective date of your policy unless another effective date is shown.

HARBOR POINT LOGISTICS

WAYNE, PENNSYLVANIA

This endorsement modifies insurance provided under the following:

LIQUOR LIABILITY COVERAGE FORM

DEFINITION OF “RECEIPTS”

SECTION V – DEFINITIONS is amended to add the following:

“Receipts”, when used as the basis for calculating premium under this policy, means the total, gross amount of money collected by an insured or by others on behalf of an insured during the policy period and, where applicable, for the calendar year immediately prior thereto, for the sale of alcoholic beverages, and of other beverages used in connection therewith. “Receipts” does not mean taxes paid by an insured directly to the taxing authority to the extent such payments are segregated from “receipts” and fully documented by an insured.

All other terms and conditions of this policy remain unchanged. This endorsement is a part of your policy and takes effect on the effective date of your policy unless another effective date is shown.

This endorsement modifies insurance provided under the following:

LIQUOR LIABILITY COVERAGE FORM

ABSOLUTE FIREARMS EXCLUSION

This insurance does not apply to “injury”, including cost of defense, for any claim or “suit” arising or resulting from directly, or indirectly, the use of firearms of any kind.

This exclusion applies to any “injury”, claim or “suit” regardless of whether the use of firearms is a direct cause, a contributing cause or a concurrent cause of any loss.

All other terms and conditions of this policy remain unchanged. This endorsement is a part of your policy and takes effect on the effective date of your policy unless another effective date is shown.